

3.	25CV2459	THOMAS STOKLEY VS. MCMAHON CONSTRUCTION INC. ET AL
MOTION FOR LEAVE TO FILE CROSS-COMPLAINT		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions pursuant to Local Rule 7.12.13.

On May 21, 2026, Defendants, Natalia Julia Hailen and Stan Vlade Hailen (“Defendants”), filed a Motion for Leave to File a Cross-Complaint in this action to assert indemnity-related claims that arises out of the same transaction, occurrence, or series of transactions or occurrences which are the subject of the Complaint. Proof of Service is attached to the motion evidencing service was effectuated on Plaintiff. There is no Proof of Service indicating service was effectuated on Co-Defendants.

Background

Plaintiff, Thomas Stokley (“Plaintiff”), alleges that on September 19, 2023, he was working for a painting subcontractor at a residence that was under construction at 2765 Capetanios Drive, El Dorado Hills, California. Plaintiff climbed scaffolding that had been erected by the stucco subcontractor and fell to the ground sustaining alleged personal injuries.

Plaintiff filed a complaint on September 17, 2025, alleging general negligence, negligence per se, premises liability and products liability against the general contractor, McMahon Construction, Michael McMahon, James McMahon; the Defendants/homeowners; Margarita Gnatyuk and Parsons Walls.

Defendants filed an Answer to the Complaint In Propria Persona and now have counsel and seek leave to file a Cross-Complaint for indemnity against their co-defendants, who they allege were in charge of the premises at the time of the incident and responsible for the safe condition of the premises.

Legal Principles

This motion is made pursuant to Code of Civil Procedure §§ 428.10(b) and 426.50, which provide:

A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following: (b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim,

right, or interest in the property or controversy which is the subject of the cause brought against him. Code of Civil Procedure § 428.10(b)

A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action. Code of Civil Procedure § 426.50.

Code of Civil Procedure § 426.50 provides that the Court, after notice to the adverse party, shall grant leave to file the cross-complaint if the party acted in good faith. Defendants seek leave to file a cross-complaint against all Cross-Defendants. As such, notice must be provided to all Cross-Defendants. Pursuant to the Proof of Service filed, service was only effectuated upon Plaintiff. Defendants' motion for leave to file a cross-complaint is denied without prejudice.

TENTATIVE RULING #3:

DEFENDANTS' MOTION FOR LEAVE TO FILE A CROSS-COMPLAINT IS DENIED WITHOUT PREJUDICE FOR LACK OF NOTICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.